

25LBCV01853 25LBCV01853

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-23

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Case Number: 25LBCV01853 Hearing Date: June 23, 2026 Dept: S27

1.

Parties' Positions

Defendant moves to compel further responses to SROGs because Plaintiff

served responses replete with boilerplate objections and with minimal

substantive information. Plaintiffs

opposes, contending their failure to serve proper responses is excusable

neglect per CCP §473(b), the motion is substantively moot because he has served

responses in substantial compliance with the Code, and sanctions are not

warranted.

2.

CCP §473(b)

As the Court has previously admonished Plaintiffs' firm, CCP §473(b)

does not apply to discovery responses or discovery motions. See *Zellerino v. Brown* (1991) 235 Cal.App.3d

1097, 1105, holding that the Discovery Act has its own remedy for failure to

timely respond, and that remedy is exclusive.

Plaintiffs' counsel must cease citing §473(b) in connection with
discovery motions.

3.

Motion Moot

Plaintiffs served supplemental responses to the subject SROGs on
6/04/26. The motion is therefore
substantively moot.

4.

Sanctions

Plaintiffs contend CCP §2033.280(c) makes clear that sanctions should
not be imposed if the opposing party acted in good faith and/or with
substantial justification. CCP
§2033.280(c) contains no such language. Additionally,
§2033.280(c) applies to RFAs, not SROGs; SROGs are the subject of this
motion.

The Court finds Plaintiffs failed to show good cause or substantial
justification for their failure to provide proper responses or to participate
in the meet and confer process.

Plaintiffs' firm's staffing issues constitute neither good faith nor

substantial justification for these failures.

Defendant's notice of motion, however, fails to comply with CCP

§2023.040, which requires the notice of motion to identify each person, party,

and/or attorney against whom the moving party seeks sanctions. The request for sanctions is therefore

denied.

Defendant is ordered to give

notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative

as directed by the instructions provided on the court website at www.lacourt.org. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. If a party submits on

the tentative, the party's email must include the case number and must identify

the party submitting on the tentative. If

the parties do not submit on the tentative, they should arrange to appear

remotely.